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Stakeholders Analysis

Human rights within American immigration is an intersectional and multidisciplinary topic that encompasses a variety of stakeholders with different perspectives, interests, and capabilities. These stakeholders include a range of individuals who express interest in immigration rights, are impacted by immigration rights, or have influence over the way immigration rights are expressed or implemented. This range of interest groups involved in immigration rights is aptly reflected by three key stakeholders: Congress, U.S. Immigration and Customs Enforcement (ICE), and the American Immigration Council.

As a legislative body of government with elected officials, Congress creates and implements acts on behalf of various constituencies. Congressional members are lobbied by individuals or groups representing the interests of causes and industries. Through these functions, Congress personifies the heterogeneous nature of the interests they represent. This can be noted in the House Homeland Security Committee's first full hearing on immigration, since Biden took office, during which Republican members attempted to link "the Biden administration's latest immigration policies ... to drug smuggling," highlighting how certain partisans have interest in continuing the status quo of criminalizing immigrants (Owen, 2023). However, there is an interest among moderate Republicans to work with Democrats in reforming immigration. After their Border Security and Immigration Reform Act was rejected, they "called for a bipartisan process to solve the country's immigration crisis" (Siegel, 2018). Because of this dichotomy, Congress is both empowered and constrained. Congress members can propose bills and enact legislation, engage with specific causes through committee work, and address their constituents' needs. However, reaching and maintaining a consensus requires adaptability, which, in turn, depends on the political landscape. Therefore, concerning immigration reform, particularly regarding the debate on enhancing mechanisms to ensure and protect immigrant rights, as well as developing services and

alternatives to detainment, positioning Congress as an institution with medium interest and significant power aligns with its nuanced and pliable nature. It has the capacity to exercise its influence, yet this power is dependent upon whether the majority prefers to maintain the status quo or ameliorate.

The U.S. Immigration and Customs Enforcement (ICE) is a federal agency under the Department of Homeland Security. ICE is primarily responsible for "Enforcement and Removal Operations" (ERO), which involves locating, detaining, and deporting anyone who enters the US illegally (Lartey, 2018). Under the Obama administration, it was tasked with targeting unauthorized immigrants who committed serious offenses, whereas, under the Trump administration, ICE was appointed to target any and every immigrant who entered the US illegally. ICE is a major stakeholder regarding unauthorized immigration and the inhumane detainment and mistreatment of said immigrants. Their interest, in terms of policy reform in favor of human rights, is very low, for their goal is to apprehend unauthorized immigrants and detain or remove them from the US. ICE is a well-funded federal agency, with an annual budget of around eight billion dollars (US Immigrations and Customs Enforcement). As a stakeholder, ICE has very high power, with the money and the staff to efficiently carry out massive numbers of detainments. In 2019, ICE detained a record of 55,000 people. ICE was created with the intention to imprison and punish people who entered the US to seek refuge.

The American Immigration Council, a non-profit advocacy group dedicated to championing the rights of immigrants in the United States, focuses on educating and assisting unauthorized immigrants in detention centers. Additionally, they collaborate with the American Immigration Lawyers Association to offer legal support to immigrants and conduct policy research for public awareness on issues related to the rights of unauthorized immigrants. As stakeholders, they have a high interest in advancing and safeguarding the rights of immigrants, distinguishing them from other organizations with diverse responsibilities. An example of the interest level of the AIC is exemplified in their Immigration Justice Campaign, "The primary goal of the Justice Campaign is to increase access to legal counsel for thousands of immigrants held in detention centers... the Campaign is building a broad network of pro bono allies to serve the many thousands of detained individuals who would otherwise go unrepresented *and* training

private lawyers with new tactics and strategies to enable them to vigorously defend immigrants facing removal” (American Immigration Council). While other entities may have varied priorities, the exclusive mission of the American Immigration Council directly addresses immigration reform. In their efforts to safeguard the rights of unauthorized immigrants in detention centers, they acknowledge and raise awareness about the serious human rights violations occurring within these facilities. Despite their substantial influence as a non-profit advocacy group, their power as stakeholders is considered moderate, as they operate independently of governmental entities. Their substantial access to employees, legal expertise, finances, and technology grants them a higher level of influence. Yet, their absence from federal institutions involved in law creation and enforcement diminishes their overall organizational power.

Congress, U.S. Immigration and Customs Enforcement (ICE), and the American Immigration Council, as stakeholders, all influence and impact human rights within the United States immigration system through differing degrees of interest and power. Congress holds moderate interest in immigration reform, but could hypothetically wield great power. ICE has low interest in these reforms, but vast power. The American Immigration Council specifically focuses on immigration reform, so they have a higher interest than other stakeholders, yet their power is more moderate. These three major stakeholders have the ability to influence and shape immigration reform, but this entirely depends on the motivations of the stakeholders themselves.

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Stakeholders Analysis Worksheet

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POLICY STAKEHOLDER ANALYSIS TOOL

This tool is used to focus on one specific issue. It is best used when stakeholders from different sectors are brought together to conduct a more comprehensive analysis.

Policy issue: Protecting immigrant rights, specifically in Detention Centers, from being violated

Team Members: Helen, Hanna, Emily, Maya, Khushi

Organization/ Group/ Individual	Group or individual's vested interest in the policy issue	Level of Knowl edge about the issue (Enter Low, Mediu m or High)	Resource s Available	Resource Mobilizat ion Capacity (Enter Low, Medium or High)	Position On Issue Enter one rating only. If not known, enter DK.
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Complete name of the organization or group. Please indicate if it is a national, regional or local group.	Identify reason or nature of group's or individual's interest in the issue.	Indicate the level of knowledge of the group about the issue	Identify specific resources held by group or to which it has access. (Resources include staff and volunteers, financial, technology, information, legal, religious/moral or others)	Estimate of which and how easily groups can mobilize resources in pursuit of objectives.	Support +3 Very strong support +2 Moderate support +1 Weak support	Neutral Enter 0	Oppose -3 Very strong opposition -2 Moderately opposed -1 Weakly opposed
Government Sector							
ICE/Border Patrol	Control immigration via detainment	High	Staff, information, legal, government funds	High			-2
DoJ	Administrative and judicial role; regulate system and make rulings	High	Staff, information, legal, government funds	Medium			-2
Political Sector							
Congress	Pass legislation, Oversight	High	Staff, government funds,	Low		0	

	Committee, Representing constituency,		moral, information, legal				
POTUS	Representing constituency; Make proclamations /promises	High	Staff, government funds, moral, information, legal	Low	Right now/Biden: +3		
Commercial Sector							
Private Detention Facilities	detains and profits from illegal immigrants	High	Staff, financial, technology, information, legal	High			-3
Non-Governmental Sector							
ACLU	Protecting immigrants and advocating for their rights	High	Staff, Finances, Legal, Information, Moral, Technology	Medium	+3		
American Immigration Council	Providing immigrants with legal representation and conducting research to advocate for	High	Staff, Finances, Legal, Information, technology	Medium	+3		

	immigration reform						
Case Management Pilot Program (CMPP)	Providing an alternative to detaining unauthorized immigrants	High	Staff, Legal, Information	Low	+3		
Other Groups from Civil Society							
The immigrants themselves	Protection and knowledge of their rights	Medium	Moral	Low	+3		
Lutheran Immigration and Refugee Service and the US Conference of Catholic Bishops' Migration and Refugee Services	Providing assistance and services, alternative to detention, to unauthorized immigrants	Medium	Moral/Religious	Low/Medium	+3		
Other							

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[1] Adapted from Brinkerhoff, D. and B. Crosby, “Managing Policy Reform: Concepts and Tools for Decision-makers in Developing and Transitioning Countries”, Kumarian Press, CT, 2002 and POLICY, “*Networking for Policy Change: An Advocacy Training Manual*, 1999.

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